

**Court No. - 39**

**Case :-** WRIT - C No. - 22695 of 2020

**Petitioner :-** Smt. Poonam Rani Sharma

**Respondent :-** State Of U P And 4 Others

**Counsel for Petitioner :-** Rajneesh Kumar Sharma

**Counsel for Respondent :-** C.S.C.,Pranjal Mehrotra

**Hon'ble Naheed Ara Moonis,J.**

**Hon'ble Dinesh Pathak,J.**

Learned counsel for the petitioner seeks adjournment of the case for a week.

As prayed, let this matter be placed in the week commencing 25.01.2021 in the additional cause list.

**Order Date :-** 13.1.2021

Manish Himwan

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**Counsel for Respondent :-** C.S.C.,Pranjal Mehrotra

**Hon'ble Mrs. Sunita Agarwal,J.**

**Hon'ble Deepak Verma,J.**

No one has put in appearance on behalf of the petitioner. Sri Pawan Kumar Mishra, holding brief of Sri Pranjal Mehrotra learned counsel for the respondent is present.

The demand notice dated 30.05.2020 is being challenged on the ground that the checking report, which is the basis of the issuance of the said notice had not been served upon the petitioner or his representative by any mode as prescribed under Clause 8.1(a)(vi) of the U.P. Electricity Supply Code, 2005. In fact, the said report had been prepared out of vengeance. The demand for unauthorised use of electricity is, therefore, illegal.

The dispute in the present petition is, thus, with regard to the procedure adopted by the inspection team and determination of civil liability of the petitioner for the allegations of theft of electricity.

In the considered opinion of the Court, the dispute would require a factual inquiry.

Considering the averments in the writ petition, without entering into the merits of the claim of the parties, a liberty is granted to the petitioner to furnish reply to the provisional assessment notice within a period of two weeks along with the copy of this order.

In case, such a reply is filed, the Assessing Officer shall be under obligation to take an expeditious decision by passing a reasoned and speaking order, in accordance with law, considering all the objections raised by the petitioner. The final assessment order, if any, passed by the Assessing Officer shall be subject to the fresh order being passed after dealing with all the objections raised by the petitioner, as directed above.

In any case, the decision as aforesaid be taken within a period of four weeks from the date of receipt of the reply of the petitioner. The demand notice dated 30.05.2020 shall not be pressed till passing of the said order. However, in case, the petitioner chooses not to furnish any reply within the time given above, it would be open for the respondents to proceed in accordance with law.

The writ petition is, accordingly, ***disposed of***.

**Order Date :-** 23.2.2021/P Kesari